

**United States Department of Agriculture
Justification for Other than Full and Open Competition
Federal Acquisition Regulation (FAR) Part 6.3
Control No. (if applicable)**

1. Identification of the agency and the contracting activity.

USDA, ARS, APD, Acquisition Branch
5601 Sunnyside Avenue,
Beltsville, MD 20705-5116
POC: Tiffany Reval, 580-318-0321

2. The nature and/or description of the action being approved.

While a new procurement is being solicited, the Agricultural Research Service (ARS), requires a two-month extension of contract 12505B20D0001 for waste removal services for the National Centers for Animal Health. Due to the urgency and critical nature of these services, only the incumbent contractor can continue providing them without a significant break in service, cost, and risk to ARS operations. The current contract expires on 04/30/25. The modification will extend the current contract by two (2) months (05/01/25 – 06/30/25).

ARS proposes to limit competition pursuant to the authority of 10 U.S.C. 2304(c)(2), as implemented by FAR 6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements.

(a) Name and address of the contractor:

Zero Waste Solutions, Inc.
P.O Box 5097
Concord, CA, 94524

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

The National Centers for Animal Health requires waste removal for the campus located at 1920 Dayton Ave. in Ames, Iowa.

Dumpsters:

The contractor shall provide thirteen 6 cubic yard dumpsters for the campus. The dumpsters shall be emptied three times per week. All waste collected from these dumpsters shall be disposed of at the City of Ames Resource Recovery Plant.

Trash Compactor:

The USDA owned trash compactor shall be emptied once per week. The contents of the compactor shall be taken to the City of Ames Resource Recovery Plant.

The period of performance for this modification is 05/01/25 – 06/30/25 with an estimated value of \$19,481.90. The total cost of the contract will increase from \$698,728.44 to \$718,210.34.

There are no changes to the Statement of Work (SOW); therefore, the pricing for the extension of services will mirror that of Option Period four, as negotiated at the time of the contract award and previously determined to be fair and reasonable.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c)(2), as implemented by FAR 6.302-1: Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Supporting rationale, demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

As the current contract ends on 04/30/25 and the new contract will not be awarded on time, ARS will lose the necessary waste removal services. Failure of this waste removal contract would negatively impact cleanliness both inside and outside of all buildings. This would enhance the spread of disease through rodents, birds, and other animals that have access to facility grounds/property. This would also have an impact on the employees and animals throughout the facility and the surrounding community of Ames.

Considering the facts as detailed above, awarding this modification to the incumbent contractor on a sole-source basis is in the best interest of the Government as it provides the most economical and efficient method to prevent a break in service.

6. A description of efforts made to ensure offers are solicited from as many potential sources as is practicable.

A new procurement is currently being competed via SAM.gov under solicitation number 12405B25Q0103 as a total small business set-aside. This justification is only for a short-term extension to maintain continuity of service during the interim.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Prior to award of 12505B20D0001, the pricing for option period four was evaluated and determined to be fair and reasonable. The pricing for this two-month extension modification remains at option period four pricing, and is determined to be fair and reasonable.

8. A description of the market research conducted and the results or a statement of the reason Market Research was not conducted.

Market research was conducted to evaluate the best course of action. While other sources exist, no other contractor can meet the immediate needs of the agency without an unacceptable delay and increase in cost. ARS anticipates adequate competition through the new procurement that is currently solicited on SAM.gov (12405B25Q0103).

9. Any other facts supporting the use of other than full and open competition.

None.

10. A listing of the sources, if any, that expressed a written interest in the acquisition.

No sources other than the incumbent can meet the timeline and continuity requirements without the agency incurring substantial risks.

11. A statement of actions, if any, the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

A competitive solicitation for a new long-term contract has been posted on SAM.gov under 12405B25Q0103. The solicitation closes on 5/22/2025.

Certifications & Approvals

Supporting data that form the basis for and included in this justification are certified accurate and complete.



The information contained in this Justification for Other Than Full and Open Competition is certified accurate and complete to the best of my knowledge and belief.

